

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1670

By: Cantrell

AS INTRODUCED

An Act relating to professions and occupations;
amending 59 O.S. 2021, Section 1315, which relates to
bail bondsmen; removing alcohol licensee exemption;
and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1315, is
amended to read as follows:

Section 1315. A. The following persons or classes shall not be
bail bondsmen, shall not perform the acts of a bail bondsman and
shall not directly or indirectly receive any benefits from the
execution of any bail bond:

1. Persons convicted of, or who have pled guilty or nolo
contendere to, any felony or to a misdemeanor involving dishonesty
or moral turpitude;

2. Jailers;

3. Police officers;

4. Committing judges;

5. Municipal or district court judges;

1 6. Prisoners;

2 7. Sheriffs, deputy sheriffs and any person having the power to
3 arrest or having anything to do with the control of federal, state,
4 county or municipal prisoners;

5 8. Any person who holds any license provided for in Section 2-
6 101 of Title 37A of the Oklahoma Statutes or is an agent or officer
7 of any such licensee, except for an individual holding an employee
8 license pursuant to paragraph 22 of subsection A of Section 2-101 of
9 Title 37A of the Oklahoma Statutes or as specifically authorized for
10 a licensed bondsman in Section 1315.1 of this title;

11 9. Any person who holds any license or permit from any city,
12 town, county, or other governmental subdivision for the operation of
13 any private club at which alcoholic beverages are consumed or
14 provided, except as specifically authorized for a licensed bondsman
15 in Section 1315.1 of this title;

16 10. Any person or agent of a retail liquor package store; and

17 11. Any person whose bail bondsman license has been revoked by
18 the Insurance Commissioner.

19 B. This section shall not apply to a sheriff, deputy sheriff,
20 police officer, or officer of the law who is not on duty and who
21 assists in the apprehension of a defendant.

22 C. ~~The provisions of this section shall not apply to persons~~
23 ~~possessing permits or licenses pertaining to alcoholic beverages, as~~
24 ~~defined in Section 1-103 of Title 37A of the Oklahoma Statutes,~~

1 ~~which were issued prior to May 23, 1984. No one shall be permitted~~
2 ~~to maintain an office for conducting bail bonds business where~~
3 ~~alcoholic beverages are sold for on-premises consumption.~~

4 ~~D.~~ No person shall be permitted to maintain an office for
5 conducting a bail bond business where persons disqualified pursuant
6 to paragraph 1 of subsection A of this section are present, except
7 as necessary for such persons to obtain a personal bail bond.

8 ~~E.~~ D. For purposes of this section, the marriage or
9 cohabitation of a bail bond licensee or license applicant with a
10 person disqualified pursuant to subsection A of this section does
11 not, as a matter of fact, constitute the receipt of benefits from
12 the execution of a bail bond. In such circumstances, the receipt of
13 benefits from the execution of a bail bond shall be subject to a
14 factual determination by the Commissioner.

15 SECTION 2. This act shall become effective November 1, 2025.
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